

24STCV10296 24STCV10296

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-09-22

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Case Number: 24STCV10296 Hearing Date: September 22, 2026 Dept: 514

Angel v. Fernandez

24STCV10296

Plaintiff's Motion for Terminating Sanctions

Tentative Ruling

The motion is denied.

Background

This case arises out of allegations of fraud, breach of contract, and various other torts.

On April 24, 2024, Geraldine Angel ("Plaintiff") filed the complaint in this action against Alvin Bautista Fernandez, George W. Angel, George C. Fernandez (collectively "Defendants"), and Does 1 through 50.

On May 29, 2024, Defendants filed an answer to the complaint and a cross-complaint against Plaintiff and Does 1 through 10.

The cross-complaint has gone through several iterations. The currently operative cross-complaint is the Third Amended Cross-Complaint (the "TACC") filed on November 25, 2025.

On July 28, 2026, Plaintiff filed this motion to strike the TACC as a terminating sanction. Defendants filed an opposition on August 25, and Plaintiff filed a reply on September 15.

Trial is set for April 27, 2027.

Discussion

Plaintiff seeks a terminating sanction and/or discovery sanctions against Defendants based on the failure of Defendants to file a notice of related cases, the failure to join an indispensable party, and other grounds.

Plaintiff argues terminating sanctions are warranted because Defendants (among other things) failed to identify in discovery a related case, Case No. 24STCV31324, and failed to file a notice of related cases.

The Court denies the request to impose terminating sanctions and/or discovery sanctions against Defendants for failure to file a notice of related cases. The duty to file a notice of related cases is on all parties to a civil action. Even after Plaintiff became aware of the potentially related case, Plaintiff did not file a notice of related cases. Moreover, a terminating sanction is not an appropriate sanction for the failure to file a notice of related cases, and the failure to make such a filing is not subject to discovery sanctions.

The Court also denies the request to impose terminating sanctions and/or discovery sanctions against Defendants for failure to disclose the existence of the potentially related case in discovery. Terminating sanctions are not appropriate in these circumstances, and Plaintiff does not identify, in the notice of motion and motion, what discovery sanctions she seeks. Moreover, if Plaintiff contends that she has been unduly prejudiced by the late disclosure of material information, she does not explain why an alternative remedy (such as a brief continuance of the trial date to conduct additional discovery) is not appropriate.

The

Court does not in any way condone the failure to of any party to give complete, truthful answers under oath to interrogatories and other discovery requests. But Plaintiff has not made a sufficient showing for the imposition of the sanctions that she seeks.

Finally,

if a party in Case No. 24STCV31324 is a necessary party here, and if there is a legal and factual basis to add that party to this litigation at this time, Plaintiff may choose to do so through appropriate means.

The Court DENIES the motion of Plaintiff

Geraldine Angel for an order striking the Answer to the Complaint, and dismissing the Third Amended Cross-Complaint, and other sanctions.

Moving

Party is ordered to give notice.